

Tamil Nadu Panchayats (Interpellation of Chairman of District Panchayat by The Members) Rules, 1998

Source: <https://indiankanoon.org/doc/133092486/>

Skip to main content

Legal Document View

Tools for analyzing structure and cite text of judgments

Unlock Advanced Research with

PRISM

AI

Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions

-

Know your Kanoon

-

Doc Gen Hub

-

Counter Argument

-

Case Predict AI

-

Talk with IK Doc

-

...

Upgrade to Premium

[Cites

0

, Cited by

0

]

State of Tamilnadu- Act

Tamil Nadu Panchayats (Interpellation of Chairman of District Panchayat by The Members) Rules, 1998

TAMILNADU

India

Tamil Nadu Panchayats (Interpellation of Chairman of District Panchayat by The Members) Rules, 1998

Rule

TAMIL-NADU-PANCHAYATS-INTERPELLATION-OF-CHAIRMAN-OF-DISTRICT-PANCHAYAT-BY-THE-MEMBERS-RULES-1998 of 1998

Published on 14 July 1998

Commenced on 14 July 1998

[This is the version of this document from 14 July 1998.]

[Note: The original publication document is not available and this content could not be verified.]

Tamil Nadu Panchayats (Interpellation of Chairman of District Panchayat by The Members) Rules, 1998

Published vide Notification No. G.O. Ms. No. 145, Rural Development (CI), dated the 14th July 1998 - No. SRO A-39 (a-1) 98

G.O. Ms. No. 145. - In exercise of the powers conferred by clause (v) of sub-section (2) of section 242 of the Tamil Nadu Panchayats Act, 1994 (Tamil Nadu Act

21 of 1994

), the Governor of Tamil Nadu hereby makes the following Rules: -

1.

Short title.

- These rules may be called the Tamil Nadu Panchayats (Interpellation of Chairman of District Panchayat by the Members) Rules, 1998.

2.

Restriction on questions.

- No question shall be asked or answered at a meeting as to any matter not connected with the administration of the district panchayat and no question shall be asked except as to matters of fact and the answer shall be confined to a statement of facts. Except as thus provided, any question may be asked by any member, subject to the conditions and restrictions specified in these rules.

3.

Intimation as to question.

- A member who wishes to ask a question shall intimate his intention in writing to the Chairman by giving at prior notice of not less than ten clear days and such notice shall contain a copy of the question he wishes to ask.

4.

Admissible questions.

- In order that a question may be admissible, it must satisfy the following conditions, namely: -

(i)

it shall be related to the administration of the district panchayat and it shall be based on facts;

(ii)

it shall not relate to any name or statement not strictly necessary to make the question intelligible;

(iii)

if a question contains a statement, the member asking it shall make himself responsible for the accuracy of the statement;

(iv)

it shall not contain arguments, inferences, ironical, satirical expressions or defamatory statements;

(v)

it shall not ask for an expression of opinion or the solution of an abstract legal question or of a hypothetical proposition;

(vi)

it shall not be asked as to the character or conduct of any person except in his official or public capacity;

(vii)

it shall be short and brief and shall not be of excessive in length; and

(viii)

a question once fully answered may not be asked again.

5.

Decision as to the questions.

- The Chairman shall decide on the admissibility of a question and either allow or disallow if before the date fixed for the next meeting for which it may be within the time specified under Rule 3. He may disallow any question, if in his opinion, it is an abuse of the right of questioning or where in his opinion it cannot be answered consistently in the public interest, and shall disallow any question which, in his opinion, contravenes any of these rules; and in such case, the question shall not be entered in the proceedings of the district panchayat.

6.

Entry of questions into the agenda.

- Questions allowed by the Chairman shall be entered in the agenda and the Chairman shall answer every question so entered, if not previously withdrawn by the member putting it, in the order in which it stands in the paper, before any business is entered upon at the meeting. The answer shall be confined to a statement of facts only:

Provided that the Chairman may, at his discretion, on the ground of public interest, answer a question on the agenda, even though the question may have been withdrawn.

7.

Supplementary questions.

- Any member may put a supplementary question for the purpose of seeking further answers and clarification regarding

which an answer has been given:

Provided that the Chairman shall disallow any supplementary question if, in his opinion, it infringes the rules as to the subject matter of question and does not confirm to the conditions specified under rule 4:

Provided further that the Chairman may decline to answer a supplementary question without notice, in which case it may be put only in the form of a fresh question at a subsequent meeting.

8.

Bar of discussion on answered question.

- No discussion shall be permitted in respect of any question or of any answer given to a question, asked under these rules.

9.

Minutes.

- The question asked and the answer given to it shall be entered in the minutes of the district panchayat.

10.

Moving a resolution.

- The procedure prescribed in rules 1 to 9 of these rules for raising question shall be followed to move a resolution in the District Panchayat.

11.

Question form the first part of business.

- Questions shall form the first part of business to be transacted in the District Panchayat followed by subjects or agenda for discussion and the resolution moved by the members shall be the last item for discussion.

Related AI tags, queries and research notes

Translation